

		pleadings govern what is relevant and in the absence of any opposition, the motions to quash are GRANTED. Tricia is directed to give notice.
6	Wessel – Trust (2021-01217028)	Motion to Dismiss
7	Rhodes – Trust (2025-01527303)	Joinder (2), Motion to Appoint Interim PPF, Motion for Suspension of Co-Trustee Eugene S. Rhodes’ Motion to Appoint Interim Professional Private Fiduciary to Replace Existing Co-Trustees (ROA 12) is GRANTED set forth below. Paul M. Rhodes’ Motion for Suspension of Co-trustee Eugene S. Rhodes and Other Relief, Including Appointment of Independent Trust Company (ROA 54) is GRANTED in part as set forth below. The court makes no ruling on the various objections filed in connection with these motions (ROAs 91, 99, 108, 114, 119, 124, & 163) because the evidence objected to is not material to the court’s disposition of the motions. The court considers Eugene’s and Paul’s declarations only for the purpose of demonstrating the state of mind of the declarants, showing hostility and lack of cooperation between them. The court does not consider any of the factual evidence offered in those declarations for their truth. Eugene’s Request for Judicial Notice (ROA 71) is DENIED as the offered documents are not material to the court’s disposition of the motions. Eugene S. Rhodes (Eugene) ¹ and Paul M. Rhodes (Paul) are co-trustees of the Frank A. Rhodes, Jr. Separate Property Trust (Trust). The Trust requires two or more trustees to exercise their powers only by unanimous consent. (Exhibit A to ROA 2 at § 10.10.)

¹ Because the parties share a last name, the court refers to them by their first names. No disrespect is intended.